

ROGERS FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1425
(Reference to JUDICIARY AND ELECTIONS Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 16-135, Arizona Revised Statutes, is amended to
3 read:

4 16-135. Change of residence from one address to another

5 A. An elector who is correcting the residence address shown on the
6 elector's voter registration record shall reregister with the new
7 residence address or correct the voter registration record as prescribed
8 by this section.

9 B. An elector who moves from the address at which the elector is
10 registered to another address within the same county and who fails to
11 notify the county recorder of the change of address before the date of an
12 election shall be allowed to correct the voter registration records at the
13 appropriate polling place for the voter's new address. The voter shall
14 present a form of identification that includes the voter's given name and
15 surname and the voter's complete residence address that is located within
16 the precinct for the voter's new residence address. The voter shall

1 affirm in writing the new residence address and shall be allowed to vote a
2 provisional ballot.

3 C. When an elector completes voting a provisional ballot, the
4 election official shall place the ballot in an envelope for provisional
5 ballots and shall deposit the envelope in the ballot box designated for
6 provisional ballots.

7 D. Within ~~ten~~ [SIX] [SEVEN] calendar days after a general election
8 that includes an election for a federal office and within five ~~business~~
9 CALENDAR days after any other election, a provisional ballot shall be
10 compared to the signature roster for the precinct in which the voter was
11 listed and if the voter's signature does not appear on the signature
12 roster for that election and if there is no record of that voter having
13 voted early for that election, the provisional ballot shall be processed.
14 If the signature roster or early ballot information indicates that the
15 person did vote in that election, the provisional ballot for that person
16 shall remain unopened and shall not be counted.

17 E. An elector may also correct the residence address on the
18 elector's voter registration record by requesting the address change on a
19 written request for an early ballot that is submitted pursuant to section
20 16-542 and that contains all of the following:

- 21 1. A request to change the voter registration record.
- 22 2. The elector's new residence address.
- 23 3. An affirmation that the information is true and correct.
- 24 4. The elector's signature.

25 Sec. 2. Section 16-201, Arizona Revised Statutes, is amended to
26 read:

27 16-201. Primary elections

28 A primary election shall be held on the ~~first~~ [SECOND TO] LAST
29 Tuesday in ~~August~~ JULY in any year in which a general election or special
30 election is held and at which candidates for public office are to be
31 elected.

32 Sec. 3. Section 16-204, Arizona Revised Statutes, is amended to
33 read:

34 16-204. Declaration of statewide concern; consolidated
35 election dates; definition

36 A. The legislature finds and determines that for the purposes of
37 increasing voter participation and for decreasing the costs to the
38 taxpayers it is a matter of statewide concern that all elections in this
39 state be conducted on a limited number of days and, therefore, the
40 legislature finds and declares that the holding of all elections on
41 certain specific consolidated days is a matter of statewide concern. This
42 section preempts all local laws, ordinances and charter provisions to the
43 contrary.

44 [B. For elections held before 2014 and notwithstanding any other
45 law or any charter or ordinance of any county, city or town to the
46 contrary, an election held for or on behalf of a county, city or town, a
47 school district, a community college district or special districts
48 organized pursuant to title 48, chapters 5, 6, 8, 10, 13 through 16 and 33
49 may only be held on the following dates:

1 1. Except for regular elections for candidates in a city or town
2 with a population of one hundred seventy-five thousand or more persons,
3 all elections, including recall elections and special elections to fill
4 vacancies, shall be held on:
5 (a) The second Tuesday in March.
6 (b) The third Tuesday in May.
7 (c) The tenth Tuesday before the first Tuesday after the first
8 Monday in November.
9 (d) The first Tuesday after the first Monday in November.
10 Notwithstanding any other law, an election must be held on this date for
11 the approval of an obligation or other authorization requiring or
12 authorizing the assessment of secondary property taxes by a county, city,
13 town, school district, community college district or special taxing
14 district, except as provided by title 48.
15 2. For regular elections that are only for candidates in a city or
16 town with a population of one hundred seventy-five thousand or more
17 persons and not including recall elections and special elections to fill
18 vacancies in those cities or towns, elections shall be held on:
19 (a) The tenth Tuesday before the first Tuesday after the first
20 Monday in November.
21 (b) The first Tuesday after the first Monday in November.
22 C. For elections held before 2014, for any city or town, including
23 a charter city, that holds its regularly scheduled candidate elections in
24 even-numbered years pursuant to subsection B, paragraph 2 of this section,
25 the term of office for a member of the city council or for the office of
26 mayor begins on or after the second Tuesday in January in the year
27 following the election.]
28 [D.] [B.] Subsections [B and] C [AND D] of this section do not
29 apply to an election regarding a county or city charter committee or
30 county or city charter proposal that is conducted pursuant to article
31 XIII, section 2 or 3 or article XII, section 5, Constitution of Arizona.
32 [E.] [C.] Beginning with elections held in 2014 and later and
33 notwithstanding any other law or any charter or ordinance to the contrary,
34 a candidate election held for or on behalf of any political subdivision of
35 this state other than a special election to fill a vacancy or a recall
36 election may only be held on the following dates and only in even-numbered
37 years:
38 1. ~~Through 2019, the tenth Tuesday before the first Tuesday after~~
39 ~~the first Monday in November.~~ Beginning in ~~2020~~ 2026 and later, the
40 ~~{{election shall be held on the}}~~ first [SECOND TO] LAST Tuesday in ~~August~~
41 JULY. If the political subdivision holds a primary or first election and
42 a general or runoff election is either required or optional for that
43 political subdivision, the first election shall be held on this date,
44 without regard to whether the political subdivision designates the
45 election a primary election, a first election, a preliminary election or
46 any other descriptive term.
47 2. The first Tuesday after the first Monday in November. If the
48 political subdivision holds a general election or a runoff election, the
49 second election held shall be held on this date. If the political

1 subdivision holds only a single election and no preliminary or primary or
2 other election is ever held for the purpose of reducing the number of
3 candidates, or receiving a partisan nomination or designation or for any
4 other purpose for that political subdivision, the single election shall be
5 held on this date.

6 ~~[F.] [D.]~~ Beginning with elections held in 2014 and later that are
7 not candidate elections, an election held for or on behalf of any
8 political subdivision of this state, and including a special election to
9 fill a vacancy or a recall election, may only be held on the following
10 dates:

11 1. The second Tuesday in March.

12 2. The third Tuesday in May.

13 3. ~~Through 2019, the tenth Tuesday before the first Tuesday after~~
14 ~~the first Monday in November.~~ Beginning in ~~2020~~ 2026 and later, the
15 ~~{{election shall be held on the}}~~ first [SECOND TO] LAST Tuesday in ~~August~~
16 JULY.

17 4. The first Tuesday after the first Monday in November.
18 Notwithstanding any other law, an election must be held on this date for
19 the approval of an obligation or other authorization requiring or
20 authorizing the assessment of secondary property taxes by a county, city,
21 town, school district, community college district or special taxing
22 district, except as provided by title 48. Notwithstanding any other law,
23 an election must be held on the date specified in this paragraph and only
24 in even-numbered years for the approval of or authorizing the assessment
25 of transaction privilege taxes by a county, city or town.

26 [G.] [E.] Notwithstanding any other law, for an election
27 administered by a county recorder or other officer in charge of elections
28 on behalf of a city, town or school district and that is an all mail
29 ballot election for that city, town or school district, the county
30 recorder or other officer in charge of elections may use a unified ballot
31 format that combines all of the issues applicable to the voters in the
32 city, town or school district requesting the all mail ballot election.

33 [H.] [F.] For the purposes of this section, "political
34 subdivision" means any governmental entity operating under the authority
35 of this state and governed by an elected body, including a city, town,
36 county, school district or community college district or any other
37 district organized under state law but not including a special taxing
38 district.

39 Sec. 4. Section 16-206, Arizona Revised Statutes, is amended to
40 read:

41 16-206. Election day

42 A. The biennial primary election day on the ~~first~~ [SECOND TO] LAST
43 Tuesday in ~~August~~ JULY in the year the general election is held and the
44 biennial general election day on the first Tuesday after the first Monday
45 in November of every even-numbered year are not legal holidays.

46 B. Every public officer or employee is entitled to absence from
47 service or employment for the purpose of voting pursuant to section 16-402
48 on the biennial primary and general election days.

1 <<Sec. 5. ~~Section 16-550, Arizona Revised Statutes, is amended to~~
2 ~~read:~~

3 ~~16-550. Receipt of voter's ballot; cure period; tracking~~
4 ~~system~~

5 ~~A. Except for early ballots tabulated as prescribed in section~~
6 ~~16-579.02 or, beginning in 2026, received at a voting location after a~~
7 ~~voter's identification is confirmed as prescribed by section 16-579,~~
8 ~~subsection A, paragraph 4, on receipt of the envelope containing the early~~
9 ~~ballot and the mail affidavit, the county recorder or other officer in~~
10 ~~charge of elections shall compare the signature on the envelope with the~~
11 ~~signature of the elector on the elector's registration record as~~
12 ~~prescribed by section 16-550.01. If the signature is inconsistent with~~
13 ~~the elector's signature on the elector's registration record, the county~~
14 ~~recorder or other officer in charge of elections shall make reasonable~~
15 ~~efforts to contact the voter, advise the voter of the inconsistent~~
16 ~~signature and allow the voter to correct or the county to confirm the~~
17 ~~inconsistent signature. The county recorder or other officer in charge of~~
18 ~~elections shall allow signatures to be corrected not later than the fifth~~
19 ~~business CALENDAR day after a primary, general or special election that~~
20 ~~includes a federal office or the third business day after any other~~
21 ~~election. If the election is a primary, general or special election that~~
22 ~~includes a federal office and there are outstanding ballots that require~~
23 ~~identification or ballot signatures to be corrected or confirmed, in~~
24 ~~addition to the office's regular business hours, the county recorder's and~~
25 ~~any city or town clerks' offices that have an agreement with a county to~~
26 ~~be used as locations at which a voter may submit proof of identification~~
27 ~~shall be open during regular business hours to allow for curing signatures~~
28 ~~during the Friday and weekend before and the Friday and weekend after the~~
29 ~~election. Regular business hours include at a minimum 8:00 a.m. until~~
30 ~~5:00 p.m. If there are no ballots remaining that require identification~~
31 ~~or signatures to be cured, the county recorder and city and town clerks~~
32 ~~are not required to be open during the weekend. If the signature is~~
33 ~~missing, the county recorder or other officer in charge of elections shall~~
34 ~~make reasonable efforts to contact the elector, advise the elector of the~~
35 ~~missing signature and allow the elector to add the elector's signature not~~
36 ~~later than 7:00 p.m. on election day. If satisfied that the signatures~~
37 ~~correspond, the recorder or other officer in charge of elections shall~~
38 ~~hold the envelope containing the early ballot and the completed mail~~
39 ~~affidavit unopened in accordance with the rules of the secretary of state.~~
40 ~~Signatures that cannot be verified pursuant to section 16-550.01 or cured~~
41 ~~pursuant to this section shall be rejected. If the ballot is a~~
42 ~~conditional provisional ballot, the voter shall provide proof of~~
43 ~~identification to the county recorder or other officer in charge of~~
44 ~~elections not later than the fifth business CALENDAR day after a primary,~~
45 ~~general or special election that includes a federal office or the third~~
46 ~~business day after any other election. Beginning with the first missing~~
47 ~~or mismatched signature that is identified after the period of early~~
48 ~~voting begins through the Monday immediately preceding the election, the~~
49 ~~county recorder or other officer in charge of elections shall submit daily~~

~~1 to the political parties that are qualified for continued representation
2 on the state ballot an updated list of all voters whose signatures are
3 missing or inconsistent with the voter's signature on the voter's
4 registration record. Beginning on the Wednesday immediately following the
5 election through the end of the signature cure period after a primary,
6 general or special election that includes a federal office, or the third
7 business day after the election for any other election, the county
8 recorder or other officer in charge of elections shall submit daily to the
9 political parties that are qualified for continued representation on the
10 state ballot an updated list of all voters whose signatures are
11 inconsistent with the voter's signature on the voter's registration record
12 and all voters who voted with a conditional provisional ballot. This list
13 of voters whose signatures require curing shall include for those voters
14 all voter information that is provided to the political parties that are
15 qualified for continued representation on the state ballot as prescribed
16 by section 16-168.~~

~~17 B. The recorder or other officer in charge of elections shall
18 thereafter safely keep the mail affidavits and early ballots in the
19 recorder's or other officer's office and may deliver them for tallying
20 pursuant to section 16-551.~~

~~21 C. Processing and tabulation of individual ballots may begin
22 immediately after the envelope and completed mail affidavit are processed
23 pursuant to this section and delivered to the early election board and
24 shall continue without delay until completed. Until election day, the
25 early election board and the county recorder or other officer in charge of
26 elections shall:~~

~~27 1. Not access an aggregated complete results file of early voting
28 and vote by mail ballots that were processed and tabulated by the end of
29 the early voting period.~~

~~30 2. Not produce for internal or external use an aggregated results
31 report or associated files of complete results.~~

~~32 3. Only produce a partial results report or associated files if it
33 is part of the internal preparation for the hand count pursuant to section
34 16-602 or for the logic and accuracy testing required pursuant to section
35 16-449.~~

~~36 4. Not publicly release complete or partial results, whether for
37 internal or external use, until all precincts have reported or one hour
38 after the closing of the polls on election day, whichever is earlier.~~

~~39 D. The county recorder or other officer in charge of elections
40 shall post on its website within forty-eight hours after all ballot
41 tabulation is complete all system log files and other similar files from
42 the election management system that verify compliance with subsection C of
43 this section.~~

~~44 E. The county recorder shall send a list of all voters who were
45 issued early ballots to the election board of the precinct in which the
46 voter is registered.~~

~~47 F. For a county that uses early ballots, the county recorder or
48 other officer in charge of elections shall provide an early ballot
49 tracking system that indicates whether the voter's early ballot has been~~

1 ~~received and whether the early ballot has been verified and sent to be~~
2 ~~tabulated or rejected. The county recorder or other officer in charge of~~
3 ~~elections shall provide voters with access to the early ballot tracking~~
4 ~~system on the county's website.~~

5 ~~6. This section does not apply to:~~

6 ~~1. A special taxing district that is authorized pursuant to section~~
7 ~~16-191 to conduct its own elections.~~

8 ~~2. A special district mail ballot election that is conducted~~
9 ~~pursuant to article 8.1 of this chapter.>>~~

10 Sec. 5. Section 16-558.02, Arizona Revised Statutes, is amended to
11 read:

12 16-558.02. Replacement ballots: observers

13 A. The county recorder or other officer in charge of elections
14 shall determine a central location in the district and shall provide for a
15 ballot replacement center that is as near to that location as is
16 practicable for electors to obtain a replacement ballot or for an elector
17 who is listed as inactive to confirm or revise the elector's voter
18 registration information and receive a ballot. The location shall be open
19 from 6:00 a.m. until 7:00 p.m. of the day of the election. An elector may
20 obtain a replacement ballot until 7:00 p.m. on the day of the election on
21 presenting a signed, sworn statement that the ballot was lost, spoiled,
22 destroyed or not received.

23 B. The recorder or other officer in charge of elections shall keep
24 a record of each replacement ballot provided pursuant to this section.

25 C. If an elector to whom a replacement ballot is issued votes more
26 than once, only the first ballot received shall be counted.

27 D. FOR EACH BALLOT REPLACEMENT LOCATION, THE COUNTY CHAIRMAN OF
28 EACH PARTY MAY DESIGNATE BY WRITTEN APPOINTMENT ADDRESSED TO THE ELECTION
29 BOARD A PARTY REPRESENTATIVE AND ALTERNATES TO SERVE AS OBSERVERS. A
30 PARTY REPRESENTATIVE SHALL BE A RESIDENT OF THIS STATE AND REGISTERED TO
31 VOTE IN THIS STATE.

32 Sec. 6. Section 16-590, Arizona Revised Statutes, is amended to
33 read:

34 16-590. Appointment of challengers and party representatives

35 A. The county chairman of each party may DESIGNATE, for each
36 precinct OR LOCATION, by written appointment addressed to the election
37 board, ~~designate~~ a party agent or representative and alternates for a
38 polling place in the precinct AND AT ANY VOTING CENTER, INCLUDING AN
39 IN-PERSON EARLY VOTING LOCATION AND AN EMERGENCY VOTING LOCATION, who may
40 act as challengers for the party which appointed him.

41 B. At each voting place, one challenger for each political party
42 may be present and act, but ~~no~~ A challenger may NOT enter a voting booth
43 except to mark his ballot.

44 C. Not more than the number of party representatives for each party
45 ~~which~~ THAT were mutually agreed ~~upon~~ ON by each political party
46 represented on the ballot shall be in the ~~polling place~~ VOTING PLACE at
47 one time. If such agreement cannot be reached, the number of
48 representatives shall be limited to one in the ~~polling place~~ VOTING PLACE
49 at one time for each political party.

1 D. A challenger or party representative shall be a resident of this
2 state and registered to vote in this state.

3 Sec. 7. 2026 primary election; nomination petition forms;
4 local initiative petition forms; previous primary
5 election date

6 A. A person who desires to become a candidate at the 2026 primary
7 election, who collects signatures on a nomination petition or nomination
8 paper form, including an electronic petition with signatures as prescribed
9 by section 16-316, 16-317 or 16-318, Arizona Revised Statutes, before, on
10 or after the effective date of this ~~[section]~~ [act] and who has used a
11 petition form that includes the former primary election date of August 4,
12 2026 may lawfully submit those signatures for the 2026 primary election to
13 be held on July ~~[28]~~[21], 2026. Signatures that are collected with the
14 August 4, 2026 primary election date, that are submitted as prescribed in
15 this subsection and that otherwise comply with the requirements provided
16 by law are deemed to be as valid as signatures collected on a nomination
17 petition or nomination paper form, including an electronic petition with
18 signatures as prescribed by section 16-316, 16-317 or 16-318, Arizona
19 Revised Statutes, that complies with the newly designated primary election
20 date of July ~~[28]~~[21], 2026 and shall not be ruled invalid due solely to
21 the changed date of the primary election or for any clerical error by an
22 election official in the preparation of the electronic petition. The
23 filing officer shall not reject those nomination petitions, nomination
24 papers or signatures based solely on the date of the primary election.
25 This subsection applies to and includes nomination petitions, nomination
26 papers and signatures that are submitted through the secure online
27 signature collection system provided by the secretary of state.

28 B. Any city, town or county initiative ~~[or referendum]~~ petition
29 that is circulated before, on or after the effective date of this
30 ~~[section]~~ [act] and that is on a petition form that includes the former
31 2026 primary election date of August 4, 2026 may lawfully submit those
32 petitions and signatures for the primary election to be held on July
33 ~~[28]~~[21], 2026. Signatures that are collected with the August 4, 2026
34 primary election date, that are submitted as prescribed in this subsection
35 and that otherwise comply with the requirements provided by law are deemed
36 to be as valid as signatures collected on an initiative ~~[or referendum]~~
37 petition form that complies with the newly designated primary election
38 date of July ~~[28]~~[21], 2026 and shall not be ruled invalid due solely to
39 the changed date of the primary election. The filing officer shall not
40 reject those ~~[petitions or]~~ signatures [or petitions] based solely on the
41 date of the primary election.

42 C. This section does not require a person to file a new or amended
43 statement of interest based solely on the change in the 2026 primary
44 election date.

1 Sec. 8. 2026 primary election date; city, town and county
2 matters

3 Any election item that was duly called by a city, town or county
4 pursuant to section 16-226, Arizona Revised Statutes, for the August 4,
5 2026 primary election date shall be placed on the ballot for the newly
6 designated primary election date of July ~~[28]~~[21], 2026.

7 <<Sec. 9. Legislative intent

8 [The legislature intends and finds that this act does not make
9 changes to the length of time during which voter signatures are allowed to
10 be cured and conditional provisional ballot voters are allowed to provide
11 proof of identification, and that Laws 2024, chapter 1, section 22, as
12 amended by Laws 2024, chapter 2, section 4, continues to apply to all
13 primary, general or special elections that include a federal office in
14 2026.]>>

15 Sec. 10. Emergency

16 This act is an emergency measure that is necessary to preserve the
17 public peace, health or safety and is operative immediately as provided by
18 law.

19 Enroll and engross to conform

20 Amend title to conform

WENDY ROGERS

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